

the trial date of October 9, 2026, and a full month before the close of fact discovery on September 9, 2026.

The Court finds that the active, diligent exercise of professionalism and cooperation by counsel can easily accomplish these four depositions and any necessary Independent Medical Examinations (IMEs) within the remaining period. There are nearly sixty days between the scheduled August depositions and the trial date, which is more than sufficient time to obtain transcripts, consult expert witnesses, and finalize trial preparations. Defendant's assertion that it is foreclosed from preparing its defense is overstated and does not stand up to scrutiny. If Defendant's counsel operates with the requisite diligence and professional urgency required by a firm trial setting, all necessary discovery can and will be completed on the current schedule. To grant a seven-month continuance under these circumstances would reward passive litigation and violate the Court's commitment to dispose of general civil matters within two years of filing, as recommended by Standards of Judicial Administration, Section 2.2(d). For the foregoing reasons, the Court finds that Defendant San Bernardino City Unified School District has failed to establish good cause or demonstrate that it acted with the necessary diligence to justify a trial continuance.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2305126	I-10 LOGISTICS OWNER, LLC vs ALBUS & ASSOCIATES	MOTION FOR LEAVE TO AMEND CROSS COMPLAINT

Tentative Ruling:

Defendant and Cross-Complainant Albus & Associates ("Albus") for Leave to File a First Amended Cross-Complaint is denied.

Plaintiff I-10 Logistics commenced this action on September 28, 2023, by filing a Complaint against Albus asserting causes of action for professional negligence, negligence, breach of contract, and breach of express warranty arising from Albus's geotechnical services on the San Gorgonio Crossing/Cherry Valley project (*Complaint of Plaintiff I-10 Logistics Owner, LLC, Case No. CVRI2305126*). Attached to and incorporated within Plaintiff's Complaint as Exhibit 1 was the written Services Agreement (the "Services Contract") executed by I-10 Logistics and Albus on or about April 8, 2021 (*Complaint of Plaintiff I-10 Logistics Owner, LLC, Paragraph 7 and Exhibit 1*). Under Exhibit A - Conditions, Page 21 of the Services Contract, the contract contains an express limitation of liability provision limiting Albus's total aggregate liability to the greater of \$50,000.00 or Albus's total fee for services rendered on the project (*Complaint of Plaintiff I-10 Logistics Owner, LLC, Services Agreement, Page 21; Albus & Associates' Notice of Motion and Motion for Leave to File First Amended Cross-Complaint, Seymour Decl., Exh. A*). The total contract sum paid to Albus exceeded \$1,000,000.00 (*Complaint of Plaintiff I-10 Logistics Owner, LLC, Paragraph 8; Albus & Associates' Notice of Motion and Motion for Leave, Memorandum of Points and Authorities, Section II.A*).

On January 25, 2024, Albus filed its original Cross-Complaint against Albert A. Webb Associates and Roes 1 through 25, asserting claims for implied indemnity, comparative contribution, total equitable indemnity, and declaratory relief (*Cross-Complaint of Albus & Associates, Case No. CVRI2305126*). On February 14, 2025, Albus filed an amendment substituting KPRS Construction Services, Inc. for Roe 1 (*Cross-Complaint of Albus & Associates, Paragraph 4*).

On June 9, 2026, Albus conducted the remote deposition of David Graves, the Person Most Qualified (PMQ) of I-10 Logistics, wherein the limitation of liability provision was addressed (*Albus & Associates' Notice of Motion and Motion for Leave, Seymour Decl., Paragraph 6, Exhibit C; David Graves Deposition, Vol. I*).

On June 29, 2026, Albus filed the instant Motion for Leave to File a First Amended Cross-Complaint (*Albus & Associates' Notice of Motion and Motion for Leave to File First Amended Cross-Complaint, Case No. CVRI2305126*). Albus seeks to add Plaintiff I-10 Logistics as a Cross-Defendant and assert a fifth cause of action for "Declaratory Relief – Limitation of Liability" (*Proposed First Amended Cross-Complaint of Albus & Associates, Case No. CVRI2305126*). This proposed cause of action seeks a judicial declaration that the limitation of liability provision in the Services Contract is valid and enforceable, contractually capping any recovery by I-10 Logistics against Albus to the greater of \$50,000.00 or Albus's total fee (*Proposed First Amended Cross-Complaint, Paragraphs 28-31*). Trial in this matter is scheduled to commence on October 2, 2026 (*Albus & Associates' Notice of Motion and Motion for Leave to File First Amended Cross-Complaint*).

Lack of Necessity and Utility of the Proposed Declaratory Relief Cause of Action (CCP § 1061)

Under California Code of Civil Procedure section 1061, the court may refuse to exercise its power to grant declaratory relief if its determination is not necessary or proper under the circumstances. California courts routinely deny leave to amend to add a cause of action for declaratory relief when the requested declaration merely mirrors issues already fully framed and capable of complete resolution through existing claims or affirmative defenses (such as seeking a declaration that a contract was not breached when the complaint already asserts a breach of contract claim). Because the declaratory relief adds no real utility to the lawsuit, denial of leave is appropriate.

In this case, the proposed declaratory relief cause of action does not introduce any new substantive controversy that cannot be fully adjudicated in the main action (*Albus & Associates' Notice of Motion and Motion for Leave, Memorandum of Points and Authorities, Section IV.A*). Plaintiff I-10 Logistics has already asserted contract and tort claims arising directly from Albus's geotechnical services under the contract (*Complaint of Plaintiff I-10 Logistics Owner, LLC, Case No. CVRI2305126*). Albus's defense regarding the contractual limitation of liability is a contract-based limitation that can be fully raised, litigated, and resolved within the context of the existing breach of contract and negligence claims and Albus's affirmative defenses (*Albus & Associates' Notice of Motion and Motion for Leave, Memorandum of Points and Authorities, Section IV.B*).

Because the Services Contract is already attached to Plaintiff's Complaint, Albus's proposed declaratory relief claim adds no real utility to this lawsuit (*Complaint of Plaintiff I-10 Logistics Owner, LLC, Exhibit 1; Albus & Associates' Notice of Motion and Motion for Leave, Seymour Decl., Exh. A*). Consequently, under Code of Civil Procedure section 1061, the Court declines to exercise its discretionary power to allow a redundant claim.

Undue and Unexplained Delay Near Trial

While Code of Civil Procedure sections 473(a)(1) and 576 establish a policy of great liberality in permitting amendments in the furtherance of justice, this policy is balanced against the requirement that a party act with diligence (*General legal guidelines on leave to amend, Leave to amend.docx; California Code of Civil Procedure sections 473(a)(1), 576*). An order allowing or denying an amendment is entrusted to the sound discretion of the trial court, and an unwarranted delay in presenting an amendment may, by itself, be a valid reason for denial (*Duchrow v. Forrest (2013) 215 Cal.App.4th 1359, 1377; Miles v. City of Los Angeles (2020) 56 Cal.App.5th 728, 739*). Where a proposed pleading is presented after an unexplained delay and on the eve of trial, the court may properly deny leave to amend (*Magpali v. Farmers Group, Inc. (1996) 48 Cal.App.4th 471, 486-487*).

The Court finds that Albus has unduly and unreasonably delayed seeking this amendment. This action was initiated in September 2023, and Albus filed its original Cross-Complaint in January 2024. Albus did not file the instant motion until June 29, 2026—over two years after its original cross-complaint was filed, and nearly three years after the lawsuit began.

Albus has offered no reasonable explanation for this extraordinary delay. The written Services Contract containing the limitation of liability provision is a contract to which Albus was a direct party, executed in April 2021, and has been in Albus's possession the entire time. Moreover, the contract was attached as Exhibit 1 to I-10's Complaint in September 2023. Albus did not require the deposition of David Graves on June 9, 2026, to "discover" the limitation of liability clause, as the contract terms were known to Albus from the very inception of the contract.

Trial is set for October 2, 2026, which is in a little over a month from the date of this hearing. Allowing Albus to file a new cross-claim against the Plaintiff at this late stage of litigation would disrupt the trial schedule, require additional pleading practice, and increase trial preparation costs. Delaying trial or increasing the litigation burden on the eve of trial constitutes substantial prejudice that justifies the denial of leave to amend (*Magpali v. Farmers Group, Inc., supra, 48 Cal.App.4th at 486-488*).

Procedural Requirements of California Rules of Court, Rule 3.1324

Under California Rules of Court, Rule 3.1324(b), a motion for leave to amend a pleading must be accompanied by a supporting declaration that specifies:

1. The purpose and effect of the proposed amendments;

2. Why the proposed amendments are necessary and proper;
3. When the facts giving rise to the proposed amendment were discovered; and
4. The reasons why the request for amendment was not made earlier. (*California Rules of Court, Rule 3.1324(b)*).

Failure to satisfy these procedural requirements offers independent and sufficient grounds for the denial of a motion for leave to amend.

The Court has reviewed the supporting Declaration of Matthew C. Seymour and finds that it fails to satisfy the mandatory criteria of California Rules of Court, Rule 3.1324(b) (*Albus & Associates' Notice of Motion and Motion for Leave, Seymour Decl.*). While the declaration outlines the general purpose and effect of adding the limitation of liability claim, it is completely silent as to when the "facts" giving rise to the proposed amendment were first discovered (*Albus & Associates' Notice of Motion and Motion for Leave, Seymour Decl.*). Crucially, the declaration fails to provide any reasonable explanation as to why the request for amendment was not made earlier during the preceding two and a half years of active litigation (*Albus & Associates' Notice of Motion and Motion for Leave, Seymour Decl.*). Because the contract has been known and available to Albus since April 2021, the procedural requirements of Rule 3.1324(b) cannot be satisfied. This procedural deficiency constitutes an independent basis for denying the motion. For the reasons set forth above, the Court finds that the proposed amendment adds no real utility to the action, is sought after an unreasonable and prejudicial delay on the eve of trial, and fails to comply with the mandatory procedural requirements of California Rules of Court, Rule 3.1324.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2400857	A. vs MIMMS	MOTION TO STRIKE 3RD AMENDED COMPLAINT

Tentative Ruling:

Defendant Universal Protection Service, LP.'s Motion to Strike is granted without leave to amend.

The court may, upon a motion made pursuant to CCP §435:

- (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.
- (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(CCP § 436.) On a motion to strike, as with a demurrer, "the court treats as true the material facts alleged in the complaint, as well as any facts which may be implied or inferred from those expressly alleged." (*Washington Int'l Ins. Co. v. Superior Court* (1998) 62 Cal. App. 4th 981, 984, n. 2.) A motion to strike is the proper vehicle to attack a punitive damages claim where the facts alleged do not rise to the level of fraud,